

the damages he allegedly incurred on top of those that were charged back to his credit card. That the FACC includes additional facts that may not form the basis for a fraud claim is not relevant at this stage of the proceedings.

Finally, as to cause of action no. 9 of the FACC, cross-defendant's demurrer is **OVERRULED**. Cause of action no. 9 alleges a cause of action for rescission/restitution. As set forth above, Exhibit D attached to the FACC does not show all moneys cross-complainant paid to cross-defendant have been charged back to his credit card.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2505727	STRAY DOG FURNITURE & DESIGN, INC. VS SCOTT	PLAINTIFF/CROSS-DEFENDANT STRAY DOG FURNITURE & DESIGN, INC.'S MOTION TO STRIKE PUNITIVE DAMAGES FROM DEFENDANT/CROSS-COMPLAINANT JEFFREY SCOTT'S FIRST AMENDED CROSS COMPLAINT

Tentative Ruling: Plaintiff/cross-defendant Stray Dog Furniture & Design, Inc's motion to strike the punitive damages requests from defendant/cross-complainant Jeffrey Scott's first amended cross-complaint (FACC) is **GRANTED**. Nothing in the FACC alleges that one of cross-defendant's officers, directors, or managing agents "had advance knowledge of the unfitness of the employee and employed [them] with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are [requested] or was personally guilty of oppression, fraud, or malice." (CC 3294(b).) The punitive damages requests (p. 26, lines 4-6, and page 31, lines 24-26) are accordingly **STRICKEN**.

Cross-complainant's request for leave to amend is **GRANTED**. (*Atwell Island Water Dist. v. Atwell Island Water Dist.* (2020) 45 CA5 624, 635 [whether to grant leave to amend depends on whether there is a "reasonable possibility that the defect can be cured by amendment"]; *Courtesy Ambulance Service v. Superior Court* (1992) 8 CA4 1504, 1519, fn. 12 [abuse of discretion not to grant leave to amend where defect is curable].) Cross-complainant has 30 days to amend the FACC. (CCP 472a(d).) The amended cross-complaint shall include all amendments required by the court's 8/14/2026 orders on cross-defendant's demurrer and motion to strike. It shall also include the amended cover page that is the subject of cross-complainant's 7/31/2026 motion for leave to file a second amended cross-complaint.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2508051	CITIBANK N.A. VS ESTRADA	MOTION TO VACATE DISMISSAL 664.6 AND ENTRY OF JUDGMENT UNDER TERMS OF STIPULATION SETTLEMENT BY CITIBANK N.A.

Tentative Ruling: No tentative ruling. The motion does not comply with Local Rule 3316C. Parties wishing to argue the motion are ordered to appear. Appearance may be telephonic.